

		Based on the above, the court Based on the above, the court DENIES Plaintiff's (Ashley Raminfard) Motion to Quash Subpoena Seeking Plaintiff's Employment Records, or, in the Alternative, for a Protective Order, filed on 5-19-23 under ROA No. 180, to the extent it seeks to quash the request pertaining to ". . . wage/payroll, to include W-2s, W-4s & 1099s, salary increase/decrease records . . ." as to the Deponent. The court GRANTS the Motion as to the remaining requested records. The court DENIES Plaintiff's request for a monetary sanction because Plaintiff failed to request a monetary sanction in the Notice of Motion. The court generally cannot grant different relief, or relief on different grounds, than stated in the notice of motion. (<i>Luri v. Greenwald</i> (2003) 107 Cal.App.4th 1119, 1124-1125.) Further, the court finds that Plaintiff was substantially justified in bringing the Motion, and Defendant was substantially justified in opposing the Motion. (Code Civ. Proc., § 1987.2, subd. (a).) Plaintiff is to give notice.
8	30-2020-01170426 Babler v. Tuttle Click, Inc.	Based on Defendant's (Tuttle-Click, Inc.) Notice of Withdrawal (filed on 9-18-23 under ROA No. 195), Defendant's Motion to Quash Plaintiff Brian Babler's Notice of Issuance of Deposition Subpoena (filed on 5-5-23 under ROA No. 177, and scheduled for hearing on 9-26-23) is OFF CALENDAR .
9	30-2022-01251752 Ocloo v. Nottinson	Based on the Request for Dismissal filed on 9-13-23 under ROA No. 129, Moving Counsel's Motion to Be Relieved as Counsel (filed on 7-28-23 under ROA No. 123, and scheduled for hearing on 9-26-23) is OFF CALENDAR .
10	30-2019-01078334 Capo 2 Poche, LLC v. Kuntz	Based on the Joint Stipulation electronically received on 9-21-23 under ROA No. 291, Plaintiff's (Capo 2 Poche, LLC) Motion to Compel Defendant Daniel Kuntz to Produce Documents (filed on 5-4-23 under ROA No. 235, and scheduled for hearing on 9-26-23) is OFF CALENDAR .
11	30-2021-01202952 Paranjpe v. Almeria	As to Defendants' (Ralph Almeria and Golden Systems, LLC) unopposed Motion to Compel New Day Psychotherapy Group to Comply with Defendants' Subpoena for Plaintiff Parag Paranjpe's Mental Records (Motion), filed on 5-19-23 under ROA No. 57, the court requests Defendants to address <i>Davis v. Superior Court</i> (1992) 7 Cal.App.4th 1008, 1014.

12	30-2023-01308138 Blanco v. Nissan North America, Inc.	Defendant's (Nissan North America, Inc.) unopposed Motion to Compel Arbitration and Stay Proceedings (Motion), filed on 5-3-23 under ROA No. 17, is DENIED. Code of Civil Procedure section 1281.2 states in part, "On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: [¶] (a) The right to compel arbitration has been waived by the petitioner; or [¶] (b) Grounds exist for rescission of the agreement. . . ." <i>Toal v. Tardif</i> (2009) 178 Cal.App.4th 1208, 1219, provides, "In <i>Rosenthal v. Great Western Fin. Securities Corp.</i> (1996) 14 Cal.4th 394, 58 Cal.Rptr.2d 875, 926 P.2d 1061 (<i>Rosenthal</i>), our Supreme Court set forth the procedure to be followed when a petitioner seeks to compel arbitration: '[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable. Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. If the party opposing the petition raises a defense to enforcement—either fraud in the execution voiding the agreement, or a statutory defense of waiver or revocation [citation]—that party bears the burden of producing evidence of, and proving by a preponderance of the evidence, any fact necessary to the defense.' [Citation.]" (Footnote 8 omitted.) <i>Espejo v. Southern California Permanente Medical Group</i> (2016) 246 Cal.App.4th 1047, 1060 (<i>Espejo</i>), provides, "In context, the brief discussion of <i>Condee</i> by the court in <i>Toal</i> regarding a petitioner's ultimate burden has no bearing on the question before us—whether defendants may meet their <i>initial</i> burden to show an agreement to arbitrate by attaching a copy of the arbitration agreement purportedly bearing the opposing party's signature. We conclude they may, in compliance with the requirements of section 1281.2 and <i>California Rules of Court</i>, rule 3.1330." (Italics in <i>Espejo</i>.) <i>Gamboa v. Northeast Community Clinic</i> (2021) 72 Cal.App.5th 158, 165 (<i>Gamboa</i>), explains, "First, the moving party bears the burden of producing 'prima facie evidence of a written agreement to arbitrate the controversy.' [Citation.] The moving party 'can meet its
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